

Yugen 6.0
United Nations Human Rights Council Background Guide

***Agenda: Deliberation on Safeguarding Human Rights in the
Context of Climate Change, Environmental Degradation, and Loss
of Livelihoods.***

LETTER FROM THE EXECUTIVE BOARD

Greetings Delegates!

We extend our warm welcome to Yugen 6.0, United Nations Human Rights Council, for the simulation on “Deliberation on Safeguarding Human Rights in the Context of Climate Change, Environmental Degradation, and Loss of Livelihoods.” We request that you go through the Background Guide completely and have a better understanding of the agenda to represent your country's stance. However, bear in mind that this background guide is in no way exhaustive and is only meant to establish a platform for beginning your research. The Executive Board recommends that delegates have sufficient knowledge of the proceedings in their allotted country concerning its foreign affairs.

As the representative of a respected state in the international community, we would like to see you treat this committee and your position with respect, and we wholeheartedly hope you all come to the committee well-researched, and if there are any problems, feel free to contact any one of us on the executive board. Delegates should be well prepared to independently guide the committee and end with a consensus document, which would be a compilation of whatever was discussed.

We encourage you to thoroughly analyse the current geopolitical context, employ your diplomatic expertise judiciously, and collaborate effectively to devise innovative solutions. We sincerely hope delegates have a good time in the committee and can learn or take away something from this conference and apply the knowledge elsewhere. We extend our best wishes for a fruitful and constructive deliberation.

Regards,

Neela Siddartha
Chairperson

Lalithaanjali Gudimetla
Co-Vice Chairperson

Nandini Thakur
Co-Vice Chairperson

IMPORTANT POINTS TO REMEMBER

A few aspects that delegates should keep in mind while preparing:

1. **Procedure:** The purpose of putting in procedural rules in any committee is to ensure a more organized and efficient debate. The committee will follow the UNA-USA Rules of Procedure. Although the Executive Board shall be fairly strict with the Rules of Procedure, the discussion of the agenda will be the main priority. So, delegates are advised not to restrict their statements due to hesitation regarding procedure.
2. **Foreign Policy:** Following the foreign policy of one's country is the most important aspect of a Model UN Conference. This is what essentially differentiates a Model UN from other debating formats. To violate one's foreign policy without adequate reason is one of the worst mistakes a delegate can make.
3. **Role of the Executive Board:** The Executive Board is appointed to facilitate debate. The committee shall decide the direction and flow of debate. The delegates are the ones who constitute the committee and hence must be uninhibited while presenting their opinions/stance on any issue. However, the Executive Board may put forward questions and/or ask for clarifications at all points of time to further debate and test participants.

EVIDENCE OR BURDEN OF PROOF

1. News Sources:

a. Reuters – Any Reuters article which clearly makes mention of the fact or is in contradiction of the fact being stated by a delegate in the committee.

(<https://www.reuters.com/>)

b. State-operated News Agencies – These reports can be used in support of or against the State that owns the News Agency. These reports, if credible or substantial enough, can be used in support of or against any Country as such but in that situation, they can be denied by any other country in the committee. A few examples are:

i. RIA Novosti (Russia) <http://en.rian.ru/>

ii. IRNA (Iran) <https://www.irna.ir/>

iii. BBC (United Kingdom) <http://www.bbc.co.uk/>

2. Government Reports:

These reports can be used in a similar way as the State Operated News Agencies reports and can, in all circumstances, be denied by another country. However, a nuance is that a report that is being denied by a certain country can still be accepted by the Executive Board as credible information.

Examples are:

a. Government Websites like the State Department of the United States of America

(<https://www.state.gov/>) or

the Ministry of Defense of the Russian Federation (<https://eng.mil.ru/>)

b. Ministry of Foreign Affairs of various nations like India (<http://www.mea.gov.in/>),

People's Republic of China (<http://www.fmprc.gov.cn/eng/>),

France (<http://www.diplomatie.gouv.fr/en/>),

Russian Federation (<https://mid.ru/en/>)

c. Multilateral Organisations like the NATO (<http://www.nato.int/cps/en/natolive/index.htm>),

ASEAN (<http://www.aseansec.org/>),

OPEC (http://www.opec.org/opec_web/en/),

etc.

3. United Nations (UN) Reports:

All UN Reports are considered credible information or evidence for the Executive Board.

- a. UN Bodies: Like the SC (<https://www.un.org/securitycouncil/>), GA (<http://www.un.org/en/ga/>), HRC (https://www.ohchr.org/en/ohchr_homepage) etc.
- b. UN Affiliated bodies like the International Atomic Energy Agency (<http://www.iaea.org/>), World Bank (<http://www.worldbank.org/>), International Monetary Fund (<http://www.imf.org/external/index.htm>), International Committee of the Red Cross (<http://www.icrc.org/eng/index.jsp>), etc.
- c. Treaty Bodies like the Antarctic Treaty System (https://www.ats.aq/index_e.html), and The International Criminal Court (<https://www.icc-cpi.int/>).

Under no circumstances will sources like Wikipedia (<http://www.wikipedia.org/>), Amnesty International (<http://www.amnesty.org/>), Human Rights Watch (<http://www.hrw.org/>) or newspapers like the Guardian (<http://www.guardian.co.uk/>), Times of India (<http://timesofindia.indiatimes.com/>), etc. be accepted as a tautology.

Foreign Policy and Foreign Relations

Foreign policy, in simple terms, is what your country aims to achieve in regards to the issue at hand or in general with its relations with other countries.

1. What role must foreign policy play in your research?

Understanding the foreign policy of your country must be a checkbox that you tick off at the very beginning of your research.

Your foreign policy should dictate everything from the arguments you make, the reasoning you give for making those arguments, and the actions you take in the Council.

2. Where do I look to find foreign policy?

Most of the time, foreign policy is not explicitly stated. It must be inferred from the actions and statements issued by the country. Reading the meeting records from previous meetings of UNSC (or any other UN body where your country might have spoken on the issue) is a great place to start. If such records are unavailable, look for statements from your country's Foreign Ministry (or equivalent like Ministry of External Affairs, Ministry for Foreign Affairs etcetera) and top leadership (PM, Pres., Secretary of State, Defence Minister).

Foreign Relations on the other hand refers to the diplomatic ties that one country has with another and considers elements such as the mutual presence of embassies, consulates, ambassadors & diplomatic dialogue. More often than not, foreign policy is what will be of your primary concern during your MUN but it is important to also consider any extremities in your allotted country's foreign relations.

Introduction to the Committee

The Human Rights Council is an inter-governmental body within the United Nations system made up of 47 States responsible for the promotion and protection of all human rights around the globe. The council was created by the United Nations General Assembly on 15 March 2006 by resolution 60/251 and meets at the UN Office at Geneva. UNHRC is responsible for strengthening and promoting the protection of human rights around the globe, with the mandate to probe, investigate, and publish reports on all thematic human rights issues. The Human Rights Council also works with the UN Special Procedures established by the former Commission on Human Rights and now assumed by the Council. These are made up of special rapporteurs, special representatives, independent experts, and working groups that monitor, examine, advise and publicly report on thematic issues or human rights situations in specific countries.

Mandate of the Committee

The United Nations Human Rights Council's mandate is to promote and protect human rights globally, address human rights violations, and strengthen the overall protection of these rights. It investigates abuses, addresses thematic concerns, provides a platform for dialogue, makes recommendations to improve human rights records, and responds to human rights emergencies. Essentially, the Council acts as a global watchdog for human rights, ensuring the fundamental rights are upheld for all people worldwide.

For more info - <https://www.ohchr.org/en/special-procedures-human-rights-council>

INTRODUCTION TO THE AGENDA

Anthropogenic climate change is adversely affecting the Earth's environment and altering the ways in which people live. Politicians and decision makers are addressing greater attention towards people displaced by the effects of climate change or who will be displaced in the future. According to the UN High Commissioner for Refugees (UNHCR), three in every four refugees and displaced people around the world are currently living in countries facing high-to-extreme exposure to climate-related hazards. Tens of millions of people are left with nowhere to go as extreme weather amplifies the suffering from violence. This problem is a powerful example the human face of climate change in the international policy arena.

Environmental displacement is not solely an ecological problem. It is a multi-causal problem where ecological and socioeconomic vulnerability act together to displace marginalised people. The impacts of climate change may be the reason for why people evacuate, but they alone do not explain why people do not return to their places of origin. The problem results from the complex relationship between climate change, lack of agency, and governance. While the climate crisis has shown to directly lead to displacement, it also exacerbates conflict. This means existing threats and vulnerabilities from violence are amplified.

For example, droughts and floods in Africa are destroying farming-based livelihoods. This raises food insecurity to emergency levels for millions and adds to the already dire situation in the region, which is hosting over two million refugees from war-torn states in the region.

Collective climate action has become an urgent and essential component of peace processes. The UNHCR has also pledged to work on human rights issues relating to climate change induced population displacement and adapt much of its environment-related planning and work to address the effects of climate change, while ensuring that governments weave displacement concerns into their national climate and disaster plans as described in UNHCR's November 2025 report.

The Human Right to a Clean, Healthy and Sustainable Environment

The United Nations Human Rights Council (UNHRC) has recognised the right to a clean, healthy and sustainable environment as a human right that is important for the enjoyment of human rights and has also noted that the right to a clean, healthy and sustainable environment is related to other rights and existing international law.

The decline in services provided by ecosystems interfere with the enjoyment of a clean, healthy and sustainable environment, and that environmental damage has negative implications, both direct and indirect, for the effective enjoyment of all human rights, particularly targeting population that are already in vulnerable situations, including indigenous peoples, older persons, persons with disabilities, and women and girls.

ROLE OF INTERNATIONAL LAW

Reviewing International Human Rights Law, the International Court of Justice, in its 2025 Advisory Opinion, affirmed that the environment “is the foundation for human life, upon which the health and well-being of both present and future generations depend” and, therefore, “the protection of the environment is a precondition for the enjoyment of human rights.” The human rights harmed by climate change as considered by the Court include the rights to life, health, an adequate standard of living, privacy, family and home, and the rights of women, children, and indigenous peoples. Furthermore, States have obligations to ensure the effective enjoyment of these rights. Finally, the ICJ concluded that “States have obligations under International Human Rights Law to respect and ensure the effective enjoyment of human rights by taking necessary measures to protect the climate system and other parts of the environment.”

Rationale behind the agenda:

Addressing climate change as an issue of human rights signifies a conscious effort to move away from seeing it simply as an environmental or scientific issue within specialized fora, such as the COPs

of the UNFCCC, towards viewing it as an issue involving state obligations based in international law. Addressing climate change through human rights recognizes impacts, such as rising sea levels, heat waves, and crop failures, not as mere natural disasters but as possible abuses of human rights. It highlights the stark imbalance that lies at the core of this problem, wherein people living in the developing world, indigenous populations, small-scale agricultural producers, coastal fisher communities, and informal workers suffer the earliest and worst effects even though they have been responsible for minimal contributions to global emissions. The imbalances are exacerbated by the destruction of means of livelihood in agriculture and fisheries, making individuals vulnerable and resulting in outcomes that push communities into poverty and displacement and may lead to resource conflicts and thus constitute abuses of economic, social and cultural rights. In human rights law, states are under a duty to conduct due diligence in order to protect these rights from harm by private actors such as corporations or by the state's own action or inaction; failing to set adequate climate targets can itself amount to a breach of the duty to protect the right to life.

IMPACT OF CLIMATE CHANGE

- 1. Humanitarian Impact:** Climate change is a top driver of humanitarian crisis and human suffering, particularly for the less developed nations. The impacts threaten to deepen already-wide inequalities, with consequences felt by the world at large, including instability, violence and displacement. Climate-induced displacement, without help to prepare for, withstand, and recover from climate-related shocks and stresses, displaced peoples also face increased risks of becoming displaced again.

- 2. Economic Impact:** In the long term, within an increasingly shrinking timeframe, climate change will greatly impact the global economy and country risks. The vulnerability causes unstable domestic production, which affects commodity and food exports, public finances and external debt will have a particular impact on the effects of climate change.
- 3. Political Impact:** Extreme weather events can undermine economic livelihood and increase poverty and wealth inequality between groups that are affected by the extreme weather events and those that are not. In all regions, poverty and wealth inequality have a significant influence on political violence. The impact will be most acute in low-income countries where food still accounts for a large share of the population income, but also in middle-income countries, notably due to income inequality.
- 4. Regional Impact:** The impact of climate change will be felt unevenly and in different ways, due to geographical factors and just as importantly because of economic, political, social and ethnic dimensions. Developing countries are often more vulnerable to these risks, meaning that resilience to climate change disaster is and will be structurally constrained and will facilitate socio-political and conflict risks. At regional level, Africa, followed by Asia, the Middle East and Central America, are seen as the regions most vulnerable to climate change disaster.
- 5. Cultural Impact:** Historic sites, living traditions, and creative practices face growing pressure from rising temperatures, extreme weather, and environmental degradation. Indigenous and local knowledge provides time-tested approaches to managing land, water, and ecosystems. Heritage, knowledge systems, and creativity support adaptation, strengthen social equity, and sustain livelihoods.

Immediate-Impact Case Studies

Case Study 1: Brazil – Climate-Intensified Flooding and Structural Inequality

Brazil's recent floods in Rio Grande do Sul, alongside recurring disasters in Minas Gerais, demonstrate that climate-related disasters are not purely "natural" events. Instead, they are shaped by pre-existing structural inequalities, environmental degradation, and governance gaps. Between April and May 2024, Rio Grande do Sul faced one of its worst socio-environmental crises, with nearly 90% of municipalities affected, over 2.3 million people impacted, and more than 180 fatalities. Meanwhile, Minas Gerais continues to experience recurring floods and landslides linked to deforestation and unsustainable mining.

Issues related to poor performance of the early warning system, delays in emergency response, and insufficient evacuation measures resulted in preventable casualties, posing great concerns regarding the right to life and security. Areas with informal settlements and riverside populations suffered disproportionately high amounts of damage, leading to many people being left without proper shelter in the aftermath of the event, thus violating the right to adequate housing. Meanwhile, flood-contaminated sources of water along with poor sanitation conditions in the aftermath of the event increased the risk of disease spread and other negative effects, implying concerns regarding the right to health and water. Furthermore, the disasters led to a violation of socio-economic rights as well, through the destruction of people's means of livelihood, damaged crops, and inability to access education due to the ongoing crisis. The most affected communities were Indigenous peoples, quilombola populations, and others who suffer from discrimination, thus posing problems of non-discrimination and equality as well. Overall, these events raise concerns regarding Brazil's adherence to international law concerning human rights and, specifically, due diligence and non-discrimination principles, since the Inter-American Commission on Human Rights (in terms of REDESCA) describes these events as manifestations of environmental racism.

Case Study 2: Pakistan – Climate-Driven Displacement and Chronic Flood Vulnerability (2022–2025)

Pakistan's repeated flooding between 2022 and 2025 reflects a persistent cycle of vulnerability, where climate change interacts with poverty, weak infrastructure, and governance challenges. In 2022, unprecedented monsoon rains and glacial melt submerged nearly one-third of the country, affecting 33 million people and displacing approximately 7.9 million. Continued flooding in subsequent years has hindered recovery, leaving communities trapped in recurring crises.

A lack of adequate disaster preparedness and delays in rescue operations led to increased risks faced by the affected population in terms of the right to life and security. Millions of people have been displaced, sometimes for lengthy periods without any possibility of getting long-term shelter. This situation is indicative of failure to protect the right to shelter and freedom from forced displacements. Destruction of agricultural lands, livestock and disruption of the local economy has made the situation difficult for the right to food and livelihoods. Contaminated water and poor access to health care facilities has led to outbreak of diseases and poor health status which is indicative of violation of the right to health. Damage to the schools and displacement has disrupted the education process especially among vulnerable groups of the population. The violations have impacted different population in a different manner where women, children, refugees, tenant farmers and landless laborers have found it difficult to get relief services, thus violating their right to equal assistance. Overall, it can be said that these problems show that the government failed in its obligation to prevent foreseeable damages, provide equitable disaster response and protect vulnerable groups.

Case Study 3: Philippines – Super Typhoon Yagi (Enteng) and Compound Climate Disasters (2024)

The Philippines illustrates the growing challenge of “compound climate disasters,” where repeated high-intensity events strike communities before recovery is possible. In 2024, Super Typhoon Yagi (Enteng), combined with other storms and the southwest monsoon, caused widespread flooding, landslides, and displacement across multiple regions, severely disrupting infrastructure and livelihoods.

These disasters have time and again highlighted fundamental weaknesses in resilient infrastructure and safe evacuation systems, especially within rural and coastal areas, creating serious implications for the right to life and protection from disasters. Destruction of houses has forced the affected populations to move to overcrowded and prolonged situations which have undermined the right to adequate housing, whereas the disruption of the health care facilities and the water systems has increased their vulnerability to diseases and reduced their access to basic services, resulting in issues relating to the right to health and sanitation. In addition to this, the destruction of fisheries, agriculture, and informal work activities has posed a risk to the economic well-being of the affected population, and destruction of roads and schooling has left them isolated and devoid of education and other essential services. On top of all of this, lack of participation of the affected community members in decisions on relocation and reconstruction of their homes has created problems regarding inclusion in decision-making and self-determination. Though there have been humanitarian interventions provided by various organizations, the recurring nature of these disasters reveals that there have been significant shortcomings in resilience building and climate adaptation efforts based on human rights.

Long-Term Impact Case Studies

Case Study 4: Tuvalu and Kiribati – Sea Level Rise, Habitat Loss, and Climate-Induced Statelessness

Tuvalu and Kiribati exemplify one of the most extreme long-term impacts of climate change, where rising sea levels threaten not only livelihoods but the physical existence of entire states. Coastal erosion, saltwater intrusion, and frequent flooding have already begun to compromise freshwater supplies, agriculture, and habitable land. As these impacts intensify, communities face the possibility of permanent relocation, raising unprecedented legal and ethical challenges related to sovereignty, nationality, and self-determination.

Environmental degradation in low-lying and small island states is a matter of fundamental concern because it affects access to clean water and food supply and thus constitutes a matter of violation of the rights to life and subsistence. The loss of habitable land implies gradual displacement, which can lead to infringement of the right to housing, while the risk of losing their ancestral land can lead to

deterioration of the right to culture and identity. In addition, rising sea level brings out significant legal issues related to the right to nationality and legal identity of people in situations where their home states could become uninhabitable due to the consequences of climate change, with further implications for the issue of the right to self-determination as well. UN human rights mechanisms referred to these countries as the prime example of climate injustice and inequality. Climate change became a matter of violation of human rights not only as an environmental issue but also as a matter of fundamental violation of the existing legal frameworks.

Case Study 5: Chile and Argentina – Lithium Extraction and the Just Transition

The expansion of lithium mining in the Andean salt flats of Chile and Argentina reflects a critical tension within the global shift toward renewable energy. While lithium is essential for technologies such as batteries and electric vehicles, its large-scale extraction places significant pressure on fragile ecosystems, scarce water resources, and Indigenous territories. This raises concerns about whether the global energy transition is being pursued in a manner that is equitable and sustainable.

Human rights issues associated with the intensive extraction processes linked to the clean energy transition include the depletion of water resources and interference in sensitive ecosystems, thus infringing on the right to water and the right to a healthy environment. The process of mining has interfered with the way of life of Indigenous communities through disturbing their sources of livelihood, sacred grounds, and practices, putting Indigenous rights at risk. Furthermore, lack of proper consultations and weak adherence to the principle of free, prior, and informed consent has been cited by the affected communities, challenging their right to participate. This population is often left to shoulder most of the costs while deriving minimal benefits economically, infringing on their right to equitable development. To address these issues, the international community and UN experts have emphasized the need for an approach based on rights principles in order to achieve a just transition in balancing climate action and environmental sustainability with social considerations.

Case Study 6: Ecuador – Yasuní National Park, Oil Extraction, and Democratic Environmental Governance

The situation in Ecuador's Yasuní National Park illustrates the complex intersection of fossil fuel dependence, environmental protection, Indigenous rights, and democratic governance. Despite a 2023 national referendum and Constitutional Court rulings mandating an end to oil extraction in the region, reports suggest that drilling activities continued. This raised serious concerns about the environmental and human rights situation in the region.

The oil extraction process in one of the most environmentally vulnerable parts of the world has created multiple interrelated problems of human rights nature. It has been causing deforestation, pollution, as well as massive loss of biodiversity, thereby violating the right to a healthy environment, but also posing a threat to the existence and territory of indigenous groups, including those living in voluntary isolation. Moreover, the environmental destruction caused by such actions also negatively affects the

health and livelihood of other people around, thus deteriorating their wellbeing and ways of earning a living. This highlights the problem of directly linking social progress goals to environmentally destructive practices. Taking all this into account, human rights organizations continue to insist that focus be placed on protecting the environment and the Indigenous and vulnerable population.

FRAMEWORKS AND PAST UNITED NATIONS ACTIONS ACTION

Addressing climate-induced displacement requires cooperation across multiple international and regional institutions. While each framework has a distinct mandate, together they aim to ensure that climate action is both environmentally effective and consistent with international human rights obligations.

United Nations Human Rights Council (UNHRC):

The UNHRC serves as the primary human rights body addressing the impacts of climate change. Through a series of resolutions, including the establishment of the *Special Rapporteur on Human Rights in the Context of Climate Change (2021)*, the Council has affirmed that climate change threatens fundamental rights such as the rights to life, health, housing, food, water, and livelihoods.

The Council also monitors state compliance through mechanisms such as the *Universal Periodic Review (UPR)*, *Special Procedures*, and *Treaty Bodies*, assessing whether national climate policies, disaster response measures, and adaptation strategies adequately protect vulnerable populations. In essence, the UNHRC establishes the human rights standards and principles that should guide climate action globally.

HRC Resolution 7/23 (2008): With Resolution 7/23, the Human Rights Council made its first substantial move towards associating climate change with human rights issues. Climate change was

seen as an immediate threat to individuals and communities around the world because it had direct impacts on the enjoyment of basic human rights. The resolution also called for an OHCHR report on the association between climate change and human rights, laying the foundation for the inclusion of human rights into the UN climate change framework.

HRC Resolution 35/20 (2017): In light of growing concerns about climate-induced migration, the Human Rights Council adopted Resolution 35/20, which recognized the need for enhanced protection of migrants and persons displaced across borders because of climate impacts. The resolution called for ongoing discussions and reports regarding shortcomings in the current protection regime, reflecting the heightened interest of the international community in cross-border displacement.

HRC Resolution 48/13 (2021): This is a landmark resolution because the Human Rights Council adopted Resolution 48/13, which affirmed the right to a safe and healthy environment. In doing so, the resolution provided a legal basis for addressing climate change, as it stated that environmental degradation threatens several human rights including the right to life, health, adequate shelter, food, water, and sustainable livelihoods.

HRC Resolution 48/14 (2021): The Establishment of the Mandate of the Special Rapporteur. This resolution was passed alongside Resolution 48/13, and it established the mandate for the Special Rapporteur on the Promotion and Protection of Human Rights in the Context of Climate Change. The mandate is to research and monitor the effects of climate change on human rights, and advise on climate policies based on human rights principles. The mandate has proven to be essential in promoting discussions on issues of displacement, loss and damage, and state responsibility.

UNEP and UNEA:

The United Nations Environment Programme (UNEP) supports governments by providing scientific research, policy guidance, and capacity-building to strengthen environmental protection and climate resilience. It consistently highlights the human rights implications of environmental degradation and encourages states to integrate human rights into environmental governance.

Its governing body, the *United Nations Environment Assembly (UNEA)*, adopts resolutions promoting sustainable, inclusive, and rights-based environmental policies. Together, UNEP and UNEA help translate human rights commitments into practical environmental governance and policy implementation.

UNFCCC and the Conference of the Parties (COP):

United Nations Framework Convention on Climate Change (UNFCCC) and its Conference of the Parties (COP), which is held annually, represent the major international forum where climate policies are negotiated. Agreements such as the Paris Agreement encourage states to protect, respect, promote and take into account human rights in taking climate measures, especially relating to indigenous peoples, migrants, children, persons with disabilities, and others.

Human rights have been recently included in climate negotiations related to adaptation, loss and damage, climate finance, and the Global Stocktake, supporting climate policies that are inclusive,

gender-sensitive and equitable. Whereas the UNHRC sets out human rights standards, the UNFCCC and COP create a platform for negotiating climate policies that should comply with these standards.

COP16 – Cancun Adaptation Framework (2010): The Cancun Adaptation Framework, adopted during COP16, marked the first time the UN climate framework recognized the issue of displacement caused by climate change. In particular, paragraph 14(f) of this document stressed the need for improved coordination and cooperation regarding issues of displacement, migration, and planned relocation in the context of climate change. Such recognition was essential in that it marked the realization that climate change causes human displacement as well as has environmental consequences.

Paris Agreement (COP21, 2015): The Paris Agreement further strengthened the relationship between climate action and human rights by urging the Parties to "respect, promote and consider" their obligations in terms of human rights while taking action on climate change. Specific emphasis has been placed on the rights of Indigenous Peoples, local communities, migrants, children and persons with disabilities. Alongside the implementation of the Paris Agreement, Parties have established the Task Force on Displacement under the Warsaw International Mechanism for Loss and Damage, which is responsible for making recommendations aimed at preventing and addressing displacement caused by climate change impacts.

COP27 (2022): At COP27 in Sharm El-Sheikh, Parties marked an historic moment by deciding on the formation of a Loss and Damage Fund meant to help developing countries experiencing the impacts of the adverse effects of climate change. This was done in the light of recognition that there are many communities that have experienced losses which cannot be reversed despite mitigation and adaptation measures.

COP28 (2023): COP28 built on progress made during COP27 through the operationalization of the Loss and Damage Fund, the adoption of its governance mechanism, and securing initial contributions. COP28 was also the end point of the First Global Stocktake process, during which it was emphasized that any serious action against climate change needs to be based on human rights and be equitable and inclusive for those people who bear the brunt of climate change.

Regional Human Rights Mechanisms:

Regional institutions such as the *European Court of Human Rights (ECtHR)*, the *Inter-American Court of Human Rights (IACtHR)*, and the *African Court on Human and Peoples' Rights (AfCHPR)* have significantly recognised environmental degradation and climate change as issues capable of violating fundamental human rights.

These bodies require states to prevent environmental harm, consult affected communities, protect Indigenous rights, and provide effective remedies where violations occur. Their judgments reinforce international human rights principles by applying them to specific regional disputes and strengthening accountability at the domestic level. These frameworks operate as complementary parts of the international system. Together, they create a comprehensive framework for addressing climate-induced displacement in a manner that is effective, equitable, and grounded in human rights.

Conclusion

Climate change and environmental damage have moved on from being seen primarily as an environmental issue to being a human rights issue that threatens the right to life, health, food, water, shelter, culture, and livelihoods. Although international actions have been taken by the Human Rights Council, Paris Agreement, COP meetings, and other UN bodies to enhance the right to a clean, healthy, and sustainable environment, there still exist many deficiencies in terms of implementation, accountability, climate finance, and protecting the vulnerable populations. Human rights-based climate action, participation of those who are directly affected, and international cooperation are crucial in order to ensure that adaptation, mitigation, and disaster responses do not leave anyone behind. Despite the fact that these actions might not address the global climate problem immediately, they have created important legal standards, enhanced international cooperation, and ensured mechanisms for accountability and supervision in the future, showing how the international community gradually understands the importance of human rights protection amid climate change.

QUESTIONS A RESOLUTION MUST ANSWER

1. What particular legal definitions and international protection benchmarks pertain to individuals who have crossed international borders on account of slow-onset climate stressors (for instance, sea-level rise, desertification), but who are not classified as refugees under the 1951 Refugee Convention?
2. In what ways will Human Rights Impact Assessment procedures (HRIAs) be incorporated in the governance and distribution of the international Loss and Damage Fund so that funds go directly to grassroots and indigenous communities, rather than into the hands of bureaucratic state governments?
3. What obligations will member states have to impose binding due diligence and accountability standards for multinational companies operating within their territory to avoid human rights abuses stemming from corporate supply chains and extractive industry practices?
4. What kinds of reporting and rapid response protocols will be put into effect by the United Nations to avoid criminalization and physical harm directed against Environmental Human Rights Defenders (EHRDs) and indigenous defenders?
5. How should the state targets for climate adaptation and mitigation measures (including Nationally Determined Contributions / NDCs) take into account the legal rights of children and future generations under Article 12 of the Convention on the Rights of the Child?
6. What compliance measures will guarantee that the use of land for green technologies (for example, mining of lithium/cobalt, large-scale solar energy production facilities, hydroelectric power plants) respects the FPIC of indigenous and local communities?
7. What independent monitoring systems must be set up in order to supervise international carbon credit exchanges (under Article 6 of the Paris Agreement) to avoid "greenwashing" and forced relocation of local communities?

8. What expanded reporting mandate and resources will be provided to the Special Rapporteur on Climate Change and OHCHR to monitor the state compliance with human rights obligations in cases of climate-related disasters?

REFERENCE LINKS

- 1) UN Human Rights Council — Resolutions on Human Rights and Climate Change — Official UN resolutions addressing the relationship between climate change, human rights, vulnerable communities, and the right to a clean, healthy, and sustainable environment:
<https://www.ohchr.org/en/climate-change/human-rights-council-resolutions-human-rights-and-climate-changeohchr>
- 2) UNFCCC — Paris Agreement — Primary international climate treaty referring to human rights, Indigenous Peoples, local communities, migrants, children, persons with disabilities, and vulnerable groups:
https://unfccc.int/sites/default/files/resource/parisagreement_publication.pdfunfccc
- 3) UNFCCC — Cancun Adaptation Framework — Official framework recognising climate-induced displacement, migration, and planned relocation as issues requiring international cooperation:
https://unfccc.int/files/adaptation/cancun_adaptation_framework/adaptation_committee/application/pdf/1_cp.16.pdfunfccc
- 4) IPCC — Climate Change 2022: Impacts, Adaptation and Vulnerability — Authoritative scientific assessment of climate impacts, vulnerability, inequality, displacement, adaptation, and disaster risk:
<https://www.ipcc.ch/report/ar6/wg2/ipcc>
- 5) Reuters — COP27 Loss and Damage Fund — Reports the agreement to establish a fund to assist developing countries affected by climate-related loss and damage:
<https://www.reuters.com/business/cop/who-will-pay-climate-loss-damage-2022-11-20/reuters>
- 6) Reuters — COP28 Loss and Damage Fund — Reports the subsequent development of the Loss and Damage Fund, including the selection of the Philippines to host its board:
<https://www.reuters.com/world/asia-pacific/philippines-chosen-host-climate-loss-damage-fund-board-2024-07-09/reuters>
- 7) Inter-American Commission on Human Rights — Report on the Rio Grande do Sul Floods — Regional human-rights report examining structural inequality and the disproportionate effects of the 2024 floods on vulnerable communities in Brazil:
https://www.oas.org/en/iachr/reports/pdfs/2025/informe_redesca_brasil_en.pdf

- 8) UN High Commissioner for Refugees — Climate Change and Disaster Displacement — Reports the consequences faced by refugees by the effects of climate change, as well as helping them increase their resilience to future disasters: <https://www.unhcr.org/in/what-we-do/how-we-work/climate-change-and-disaster-displacement>
- 9) UN Educational, Scientific and Cultural Organization. — Culture and Climate Action — Reports on how culture shapes societies' experience of climate change and how they respond to its impacts:
<https://www.unesco.org/en/climate-change/culture>
- 10) International Court of Justice — Advisory Opinion of the Court and its response to the questions posed by the General Assembly on the obligations of States in respect of Climate Change:
<https://www.icj-cij.org/case/187>